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Case Number: 25STCV17447 Hearing Date: August 6, 2026 Dept: 414

25STCV17447 Koutsolioutsos v. Tarr, et al.

Thursday,

August 6, 2026

[TENTATIVE] ORDER DENYING PLAINTIFF AND CROSS-DEFENDANT, DINO KOUTSOLIOUTSOS', MOTION FOR JUDGMENT ON THE PLEADINGS OF THE CROSS-COMPLAINT (1707)

I. BACKGROUND

The

complaint alleges that the parties own neighboring real property. Plaintiff alleges that Defendants have been using Plaintiff's backyard to install a palm tree, an inflatable jacuzzi and building a patio that encroached upon Plaintiff's yard. Plaintiff alleges claims for trespass, private nuisance quiet title and for declaratory relief.

The

Tarr Defendants filed a Cross-Complaint asserting claims for declaratory relief and to quiet title to a prescriptive easement consisting of a strip of land on which a concrete slab sits, along with a jacuzzi, patio decking, landscaping and perimeter fencing (Disputed Land.)

II. ARGUMENTS

Cross-Defendant/Plaintiff

moves for judgment on the pleading of the Cross-Complaint on grounds that a

prescriptive easement over a portion of the true owner's land is not permissible under California law. Cross-Defendant argues that the declaratory relief claim is duplicative of the quiet title claim.

Cross-Complainants (or "the Tarrs") argue in opposition that the motion assumes the Disputed Land is necessarily part of Plaintiff's land. Rather the verified Cross-Complaint alleges that the area "may lie" within Cross-complainants' property. The claim to establish a prescriptive easement based on adverse possession is an alternative theory. Cross-Complainants argue that the motion under Code of Civil Procedure section 438 cannot determine the true boundary, resolve competing survey and historical-title evidence, or convert Plaintiff's disputed characterization of the land into an adjudicated fact.

The Tarrs argue the "proposed amendment" (submitted with their opposition and marked "received") therefore states a direct quiet-title claim based on record boundary and title, not merely an easement over land assumed to belong to Plaintiff. They argue the permit, terrain, fence history, and unresolved title chain establish far more than a speculative possibility that amendment will cure the defects asserted by Plaintiff.

Cross-Defendant replies that if the Disputed Land is located on the Tarrs' property, their prescriptive easement claim necessarily fails as a matter of law because, the Tarrs cannot obtain a prescriptive easement to maintain their encroachment on another's property. If the Disputed Area is on their property, the Tarr's claim still fails because they cannot obtain a prescriptive easement over their own property.

III. LEGAL STANDARDS

A motion for judgment on the pleadings may be granted if the court lacks jurisdiction of the subject of the cause of action or the complaint does not state facts sufficient to constitute a cause of action against that defendant (in this case, Cross-Defendant). (Code Civ. Proc., § 438, subd.

(c)(B).) A motion for judgment on the pleadings performs the same function as a general demurrer and attacks only defects disclosed on the face of the pleadings or by matters subject to judicial notice. (Burnett v. Chimney Sweep (2004) 123

Cal.App.4th 1057, 1065 [“a motion for judgment on the pleadings, like a demurrer, raises only questions of law”)

For the purposes of this motion, all properly alleged material facts are deemed true as well as all facts that may be implied or inferred from those expressly alleged. (Fire Ins. Exchange v. Superior Court (2004) 116 Cal.App.4th 446, 452).

IV. DISCUSSION

The Cross-Complaint alleges that the Tarrs own the real property at 2490 Cheremoya. (Cross-Complaint ¶ 8.) Cross-Defendant allegedly owns 2492 Cheremoya. (Cross-Complaint ¶ 9.) The Tarr property is adjacent to and immediately north of Cross-Defendant’s property.) Complaint ¶ 10.)

The pleading alleges that the Tarrs believe that the Disputed Area is on their property and believe this will be confirmed by a survey. (Cross-Complaint ¶ 11.) If the Disputed Land is on Cross-Defendant’s property, then the Tarrs “bring the causes of action set forth herein.” (Id.)

A verified complaint for quiet title requires all of the following:

“(a)

A description of the property that is the subject of the action. In the case of tangible personal property, the description shall include its usual location. In the case of real property, the description shall include both its legal description and its street address or common designation, if any.

(b)

The title of the plaintiff as to which a determination under this chapter is sought and the basis of the title. If the title is based upon adverse possession, the complaint shall allege the specific facts constituting the adverse possession.

(c)

The adverse claims to the title of the plaintiff against which a determination is sought.

(d)

The date as of which the determination is sought. If the determination is sought as of a date other than the date the complaint is filed, the complaint shall include a statement of the reasons why a determination as of that date is sought.

(e)

A prayer for the determination of the title of the plaintiff against the adverse claims." (Code Civ. Proc., § 761.020.)

A quiet title action declares the parties' right to real property as declared by the trial court.

(Western Aggregates, Inc. v. County of Yuba (2002) 101 Cal.App.4th 278, 305 ["... a trial court should not dismiss a regular declaratory relief action when the plaintiff loses, but instead should issue a judgment setting forth the declaration of rights and thus ending the controversy."])

The Cross-Complaint requests declaratory relief and to quiet title to a prescriptive easement consisting of the Disputed Area. (Cross-Complaint ¶ 1.) The Tarrs' ownership of the Disputed Area is based on their continued use and maintenance of the existing concrete slab and deck, landscaping, jacuzzi and perimeter fencing and their continuous and uninterrupted possession and hostile use of the area for more than five years. (Cross-Complaint ¶ 13-14.) The Tarrs claim title to the Disputed Area on an alternative theory, the Tarrs claim ownership by way of adverse possession through their "actual, open, hostile, continuous and exclusive possession of the Disputed Land, and Cross-Complainants are informed and believe that they have paid all taxes and assessments that have been levied or assessed against the Disputed Land for at least five (5) years prior to the filing of their Cross-Complaint."

The Tarrs cannot prevail on their prescriptive easement theory, as Cross-Defendant has established, and which the Tarrs do not meaningfully dispute. The Court cannot grant a prescriptive easement based on a party's

encroachment. (Harrison v. Welch (2004) 116

Cal.App.4th 1084, 1093.) Plaintiff

alleges that the Disputed Area encroaches on his property and that the Tarrs are trespassing. (Complaint, ¶¶ 7, 14.) Harrison concluded that an exclusive prescriptive easement, 'which as a practical matter completely prohibits the true owner from using his land' (Silacci v. Abramson, supra, 45 Cal.App.4th at p. 564, 53 Cal.Rptr.2d 37), will not be granted in a case (like this) involving a garden-variety residential boundary encroachment." (Id.)

However, the

Cross-Complaint also seeks a declaration of title based on their belief that the Disputed Area is really on their property. (Cross-Complaint ¶ 11.) The Tarrs are still entitled to such a declaration if proven in order to declare the parties' rights. (Western Aggregates at 305.)

The claim of title is alternatively

sought on grounds of "adverse possession" which is distinct from prescriptive easement. Title can be established either by prescriptive easement (prohibited under these circumstances as it involves encroachment on a neighboring party) or by adverse possession. (Harrison at 1095-1096.) Establishing title by adverse possession requires payment of taxes to acquire title while "one seeking to establish the right to an Easement by prescription need not prove payment of taxes for since an easement ordinarily is not assessed for property tax purposes, the burden of proving that it was, and that taxes were levied, is on the party contesting the prescriptive easement." (Welsher v. Glickman (1969) 272 Cal.App.2d 134, 137.)

To establish adverse

possession "the claimant must prove: (1) possession under claim of right or color of title; (2) actual, open, and notorious occupation of the premises constituting reasonable notice to the true owner; (3) possession which is adverse and hostile to the true owner; (4) continuous possession for at least five years; and (5) payment of all taxes assessed against the property during the five-year period. " (Mehdizadeh v. Mincer (1996) 46 Cal.App.4th 1296, 1305.)

Cross-Defendant does

not address this alternative theory, and therefore, is not entitled to judgment on the pleading. Cross-complainants can plead alternative and inconsistent

theories of recovery. (Rader Co. v. Stone (1986) 178

Cal.App.3d 10, 29 ["Where the exact nature of the

facts is in doubt, or where the exact legal nature of plaintiff's right and

defendant's liability depend on facts not well known to the plaintiff, the

pleading may properly set forth alternative theories in varied and inconsistent

counts."].)

V.

CONCLUSION

Based on the foregoing,

Cross-Defendant's motion for judgment on the pleading is DENIED. To the extent Cross-complainants

wish to amend to allege other theories establishing their title, Cross-complainants

should move to amend the Cross-Complaint.